

26STCV11430 26STCV11430

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-08-17

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Case Number: 26STCV11430 Hearing Date: August 17, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

26STCV11430

ERIVERTO

GONSALEZ vs GOVINDA BUDHATHOKI, et al.

August

17, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT INFINITY INSURANCE COMPANY'S

DEMURRER TO PLAINTIFF'S COMPLAINT.

RULING:

The Court sustains the
unopposed Demurrer.

Plaintiff may serve and
file a First Amended Complaint (FAC), on or before September 18, 2026.

Defendant Infinity Insurance Company to give
notice.

I.

BACKGROUND

On April 9, 2026, ERIVERTO
GONSALEZ (Plaintiff), a self-represented litigant, filed a Complaint against GOVINDA
BUDHATHOKI and INFINITY INSURANCE COMPANY (Defendants), identifying Causes of
Action for:

1. GENERAL
NEGLIGENCE;

2. BAD
FAITH; and

3. NEGLIGENT
INFLECTION OF EMOTIONAL DISTRESS (Direct and Bystander).

Plaintiff alleges that Defendant
GOVINDA BUDHATHOKI negligently caused a car accident, resulting in injuries and
emotional distress, and Defendant INFINITY INSURANCE COMPANY is liable as the
insurer that made lowball settlement offers, negligently and in bad faith.

On July 17, 2026, INFINITY
INSURANCE COMPANY (Defendant) filed the Demurrer, on grounds including that a
third party claimant cannot assert a claim for insurance bad faith in the same case
against the insured.

No Opposition has been
filed regarding this matter.

II.

LEGAL STANDARD

Demurrers are to be sustained where a pleading fails to plead adequately any essential element of the cause of action. (*Cantu v. Resolution Trust Corp.* (1992) 4 Cal.App.4th 857, 879-880.) A complaint does not necessarily need to be a model of pleading but needs sufficient factual allegations. (E.g., *State v. The Superior Court* (2001) 87 Cal.App.4th 1409, 1411.)

A “judgment creditor becomes a third party beneficiary of the policy and can enforce the insurer’s obligations thereunder, including the implied covenant of good faith and fair dealing.” (California Practice Guide: Insurance Litigation, § 15:1045.) (Underscoring added.) “ ‘Generally an insurer may not be joined as a party-defendant in the underlying action against the insured by the injured third party. The fact that an insurer has agreed to indemnify the insured for any judgment rendered in the action does not make the insurer a proper party. Liability insurance is not a contract for the benefit of the injured party so as to allow it to sue the insurer directly.’ ” (Ibid., § 15:11 [citing, e.g., *Royal Surplus Lines Ins. Co., Inc. v. Ranger Ins. Co.* (2002) 100 Cal.App.4th 193, 200.]

III.

ANALYSIS

Defendant essentially argues that it cannot be sued in negligence because its duties flow from contracting with the insured, and injured third parties cannot join an insurer as a defendant in underlying cases against insureds.

The failure to file a proper and timely opposition in trial court creates a waiver of the issues on any appeal. (*Bell v. Am. Title Ins. Co.* (1991) 226 Cal.App.3d 1589, 1602; *Cabrini Villas Homeowners Assn. v. Haghverdian* (2003) 111 Cal.App.4th 683, 693 [appellate court will not consider any erroneous rulings where an objection could have been made].) “A failure to oppose a motion may be deemed a consent to the granting of the motion.” (Cal. Rules of Court, rule 8.54(c).)

Here, Defendant correctly references applicable law and Plaintiff has filed no Opposition to raise any issue for the Court to address.

IV.

CONCLUSION

Rarely should judges sustain demurrers to initial complaints without giving leave to amend. (Tarrar Enterprises, Inc. v. Associated Indemnity Corp. (2022) 83 Cal.App.5th 685, 689.) Courts generally allow at least one time to amend a complaint, after sustaining a demurrer, even without any request for leave to amend. (McDonald v. Superior Court (1986) 180 Cal.App.3d 297, 303.)

The Court sustains the Demurrer, with leave to amend, considering that it would be Plaintiff's first opportunity to amend.